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The common heritage of Animalkind

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ABSTRACT
The idea that certain parts of the planet should be treated as the common heritage of humankind is familiar, especially within international law. One implication of that idea is that many non-human animals count as objects of our species' common heritage, that we all have a stake in. This paper, however, argues that animals should be seen as subjects of common heritage, and not just as objects. Recognising them as subjects means treating them as entities who have interests in common heritage spaces in their own right. The paper explores that idea specifically in relation to the ocean, which is the only home for trillions of animals, and investigates how it might transform the governance of the blue part of our planet.

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Introduction: whose common heritage?

The idea that certain parts of the planet should be treated as the common heritage of humankind is well established in international law. It was applied to the deep seabed, for example, by the 1982 Convention on the Law of the Sea, and extended to High Seas biodiversity by the 2023 agreement on Biodiversity Beyond National Jurisdiction. The idea has important implications in turn for non-human animals: many of them live in such places, and may benefit from actions taken to protect them from environmental degradation. It might even be that the presence of large and diverse animal populations at these sites helps explain our duty to conserve such places. The 1972 World Heritage Convention suggests that animals are important elements of our shared heritage, which humans have a duty to cooperate to protect.[1]

But it is one thing to treat (non-human) animals as objects of common heritage, and quite another to treat them as subjects. To say that animals are

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objects of common heritage implies that animals count among the things in which humans have a common stake, and possibly that we have duties to preserve them as a result. This would be compatible with saying that the animal communities of the deep seabed, say, should not be destroyed because doing so would deprive people of something which ought to be part of their shared inheritance as human beings. To treat animals as *subjects* of common heritage, by contrast, is to treat them as entities who actually have interests in common heritage spaces in their own right, or to say that those spaces in some sense belong or adhere *to them*. It would be compatible with saying that the deep seabed should not be degraded or destroyed because doing so would deprive the animals living there of something in which they too have a stake.

This more radical idea has decidedly *not* found its way into international law. This is true despite the fact that the common heritage idea has already demonstrated some degree of conceptual flexibility: over time the language of the common heritage of *mankind* has given way, for instance, to the more gender-inclusive language of *humankind* (Steer 2021). International law has also accommodated the idea that future generations, and not only present ones, should be treated as subjects of common heritage. But the conception of common heritage that emerges remains wholly anthropocentric: it treats human beings as its exclusive subjects, to the exclusion of the other animals we share the world with. Common heritage can include other animals as objects, and this can have important implications; but it is *our* (human) heritage, not theirs.

This paper will consider the claim that the ocean (or at least the vast majority of it) should be seen as part of the common heritage not only of humanity, but also of the animals that actually live there. This is not to imply that *only* the ocean can be considered part of the common heritage of animalkind, or that *only* marine animals can join humans in the status of subjects of common heritage. But the ocean is a good place to start (if not to finish) when interrogating the anthropocentric focus of the common heritage idea.

The idea that the ocean should be seen as the common heritage of marine animals (along with humans) appears to possess some initial plausibility. While comparatively few human beings live at sea, the ocean is the only home for trillions of animals. It is the place where they live their entire lives, build kinship networks, and at least in some cases sustain cultures. In a very general sense, we might say that the reason it makes sense to view parts of the ocean as the common heritage of humankind is that what happens there touches on all of our interests. But the well-being of marine animals will *also* often be impacted by decisions about oceanic conservation or exploitation. Moreover, while anthropogenic phenomena like ocean acidification and nitrogen pollution will have indirect impacts on many human

beings, they will cause direct and immediate harms to countless billions of marine animals. The same can be said for activities like the testing of nuclear weapons on the seabed, or seabed mining, which *might* affect the security of human beings but which *would* kill, maim and smother very many marine animals. It is undeniable that the interests of marine animals are at stake when decisions are made about the ongoing governance of the ocean. My suggestion is that extending the concept of common heritage to them is a plausible way of acknowledging that fact.

The idea that animals might be seen as subjects of common heritage has already begun to attract some support. Taylor (2019, p. 149) has argued that the conception of common heritage found in international law has been unduly anthropocentric to date, but that this is not an irremediable problem: rather than dispensing with the concept, it should be amended to embrace the common heritage of all life on earth. I have previously (Armstrong 2022, p. 91) criticised the anthropocentric bias of the Law of the Sea, and suggested that it would be a progressive move to consider marine animals themselves as subjects of common heritage. Jones *et al.* (2024) have defended the idea of what they call the common heritage of 'kin-kind' as a productive possibility for global governance, which would include non-human animals, alongside other living beings, as subjects of international law. Here I want to unpack this possibility systematically, by distinguishing the various *elements* that comprise the Common Heritage Principle (CHP) as it is found within international law, and assessing what each would imply for animals. I also want to assess what the practical *upshot* of considering animals as subjects of common heritage might be. Both endeavours represent important next steps in evolving discussions.

At the same time, the paper represents an intervention within debates on animal politics. In recent years, a considerable literature has grown up defending the claim that non-human animals might (morally, if not yet legally) have either property rights (Hadley 2015, Milburn 2017, Bradshaw 2020), or territorial rights (Donaldson and Kymlicka 2011). But participants in this literature have not sought to investigate the case for extending the concept of common heritage to non-human animals. This is an important question in its own right, however, since the common heritage principle is not well captured by the category of either property or territory, at least as conventionally understood. Given that the notion of common heritage has real-world legal and political significance, assessing what would be involved in extending it to animals is an important endeavour in its own right. The paper also represents an addition to discussions of multi-species justice (Celermajer *et al.* 2021, Tschakert *et al.* 2021), insofar as it asks what ocean governance could look like when it stops treating marine animals purely as resources to be divided

(Armstrong 2024), and begins to discuss them as agents with their own claims over marine spaces.

Tightening the focus

Three brief clarifications are in order. First, this paper will focus on the Common Heritage Principle as it has been promulgated within international law. This is not because international law is necessarily authoritative from a moral point of view, or because this specific conception necessarily captures everything that is interesting about the broader concept of common heritage. But this conception has been extensively discussed, and unpacked into several fairly clear components. This makes the job of assessing what might be involved in extending the principle to marine animals as subjects relatively manageable.

Second, the focus will be on marine spaces which fall beyond any state's jurisdiction. The 1982 United Nations Convention on the Law of the Sea (UNCLOS) stipulates that the seabed beyond national jurisdiction, and any non-living resources to be found there, represent part of the common heritage of mankind, while the BBNJ agreement – which has been agreed but is yet to enter into legal force – applies the language of common heritage to the living organisms found within the water column of the High Seas (Articles 5, 9). Taken together, these spaces represent over 95% of the volume of the ocean.

Finally, to avoid confusion, it is worth distinguishing CHP from two ideas with which it might potentially be conflated. On the one hand, CHP does not equate to common *ownership*. Ownership typically suggests a full set of property rights, granting an agent the authority to transfer, divide, and often even destroy an asset. CHP bestows a much more limited set of rights, including the ability to access a space, and to consume its benefits subject to common agreement. It also suggests duties of stewardship which do not always accompany the status of ownership (Taylor 2018). Within international law, instruments embodying CHP appear to have studiously avoided claims about owners or ownership (Joyner 1986, p. 194). On the other hand, CHP should be distinguished from the idea of the 'common concern of humankind' (CCH). Crucially, as we will see, endorsing CHP means accepting collective decision-making authority over designated spaces or resources, whereas CCH does not. Politically, that helps explain why both the UN Framework Convention on Climate Change and the Convention on Biological Diversity make no reference to CHP: representatives from the global South were reluctant to entertain the idea that outside actors might have a right to share in decision-making power over intra-state spaces and resources. Those representatives were content, however, to accept the much

weaker claim that some of those spaces and resources might be *of concern* to humankind in general (Taylor 2017, p. 46). That idea does not bring collective decision-making power over designated spaces or resources in tow.

There is widespread agreement about the four core components of CHP, at least as applied to the ocean (see e.g. Wolfrum 1983, Joyner 1986, Baslar 1998, Noyes 2011, Lodge 2012, Tladi 2014, Taylor 2018, Qureshi 2019). I will refer to these as sub-principles, and discuss each of them in turn.

Non-appropriation

The first sub-principle holds that spaces that are part of the common heritage of humankind cannot be converted into the exclusive *property* of any person or group. Rights to common heritage spaces are vested in humankind as a whole, and are to remain so (Noyes 2011, p. 450, Lodge 2012, p. 735). Subject to common agreement (see below), movable resources might be taken from common heritage spaces, at which point they could potentially be converted into private property: this is exactly what is envisaged if seabed mining comes to pass in 'The Area' (the deep seabed beyond national jurisdiction). But any such privatisation cannot be extended to common heritage spaces themselves. In that sense CHP appears to place a brake on capitalist appropriation of certain spaces. State *sovereignty* cannot be extended to those spaces either (Joyner 1986, p. 191).

What would it mean to apply this sub-principle to marine animals? To answer that question, we need to note an important conceptual point about the idea of 'being a subject' of CHP, which is usually left implicit at best. There are, in fact, two senses of being subject, or being *a* subject, embedded in CHP, both of which will be relevant to our discussion. The first sense points towards our status as *stakeholders*, as the kinds of beings whose interests must be accounted for: it is because we are all stakeholders in them that the appropriation of CH spaces is unacceptable. To be a subject of common heritage in this sense is to be part of the constituency with regards to whose interests any decisions must be explicitly justified. The second points towards our status as *addresses*: the rules of common heritage spaces are rules for *us* to obey;. When we are told that a space cannot be appropriated, we are 'subjected to' the demands of CHP, in the sense that its rules are meant to be morally authoritative for us too. CHP points in both directions, identifying its subjects as both stakeholders to whom justifications must be given, and addressees who must abide by common rules.

A first implication of extending non-appropriation to marine animals would be that common heritage spaces (The Area and, for certain purposes, the High Seas) cannot be carved up into the distinctive territory of any particular animal species either, or indeed any particular part of any animal species. This idea invokes (any and all subsets of) marine animals as

addressees, and says: these are spaces that you cannot appropriate for yourselves. From the normative point of view, that seems unproblematic. The ocean is a space occupied by members of many different species, often living in relations of complex interdependence. As such, it is not obvious why we would endorse claims that it is the property or territory of any one group of marine animals, such as Southern resident orcas, or leatherback turtles. The point does not require us to deny that animals have territorial rights at sea (I will return to this issue in the final section). It merely requires us to deny that any *subset* of marine animals should be seen as the exclusive owners of, or sovereigns over, stretches of the ocean.

Consider now subjects *qua* stakeholders. The underlying rationale behind the idea of non-appropriation is that CH spaces are sites where we *all* have normatively-relevant interests, and where we should all continue to be recognised as stakeholders. To appropriate CH spaces is wrongly to put our interests above others who also ought to have a say in what happens to these spaces. What would it mean to accept marine animals as stakeholders in this sense? It would mean accepting that it is partly in virtue of the stake that marine animals have in what happens to the sea that unilateral acts of appropriation are unacceptable. Taking the claims of animals seriously, we might say, would make it (more) obvious why the territorialising urge should be resisted at sea. Considering the interests of marine animals would give further weight to the idea of non-appropriation, were it needed.

Peaceful (non-military) use

The second sub-principle holds that military use serves the national interest, rather than the interests of all of humankind, and hence is inappropriate in common heritage spaces (Wolfrum 1983, p. 319). A key issue during the 1960s and 70s – when CHP was, perhaps, in its ascendancy as an idea – was the potential siting of nuclear weapons on the deep seabed, a prospect which threatened to drag the ocean's depths into the Cold War, potentially making the seabed a military target (Mickelson 2019, p. 637), and exposing it to potentially catastrophic accidents. More broadly, CHP speaks against any move to militarise common heritage spaces, including plans to use, store, or test weapons of mass destruction in them (Joyner 1986, p. 192).

The function of this sub-principle, it seems, is to rule out certain activities – and specifically the installation of weapons of mass destruction on the deep seabed – which are likely to be highly destructive to international peace, and/or to the global environment. What would it mean to apply it to animals? Here we can make the same two-fold argument. On the one hand, there seems to be no problem with extending such injunctions to marine animals conceived as addressees. Marine animals do not appear to engage in the kinds of military activities that the architects of CHP had in

mind when formulating the principle. They do not intentionally create weapons of mass destruction, or seek to instal them on the seabed or in the High Seas. On the other hand, more positively, considering animals as stakeholders might add further force to the injunction against testing, or housing, weapons of mass destruction in those spaces. Such activities would *also* expose animals to serious risks, even if those risks are rarely taken into account in discussions of global security.

Common management for the benefit of all

The third sub-principle has two elements: respecting common heritage spaces requires (1) a system of *common management*, overseeing (2) rules guaranteeing the *equitable sharing of benefits* from any permissible extractive activities. Let's take the idea of common management first, and consider a contrast with the principle of the Freedom of the Seas. Under this principle, the pre-1982 Law of the Sea conceived of the seabed beyond national jurisdiction as a *negative* commons, which all could visit, and exploit, without limit. UNCLOS, however, redefined what it came to call The Area as a *positive* commons, which no-one can exploit without the explicit consent of the international community. This introduced a revolutionary new idea into international law (Wolfrum 1983). Since 'no one can act in The Area except on behalf of humanity' (Qureshi 2019, p. 90), there is a prohibition not only on the appropriation of territory, but also on the unilateral private exploitation of resources to be found in CH spaces. That could happen by common consent only. That consent could, though, be granted by a suitable representative or fiduciary. UNCLOS stipulated that any exploitation of mineral resources in The Area would be overseen by the International Seabed Authority (ISA) as a collective agent representing all of humankind, and possessed of the right to accept or reject mining activities, and determine the rules under which they might occur.

Second, consider the equitable sharing of benefits. This is a topic of some dissensus among scholars of CHP, and between state parties to UNCLOS. One disagreement concerns the mechanisms which are supposed to be involved in benefit sharing. 'Active' benefit sharing (defended chiefly by countries in the global South) could be satisfied in two ways. One would involve all parties to UNCLOS having the effective opportunity to exploit CH resources should they desire to (in practice, this option would require a process of technology transfer). Another would involve exploitation being carried out by a representative of the international community as a whole (this is the role UNCLOS envisaged for 'The Enterprise,' an innovative international public corporation). 'Passive' participation (defended mainly by countries in the global North), on the other hand, could involve just a few private agents extracting seabed minerals, on the condition that

they share the proceeds (which might possibly include non-material benefits) with countries that do not possess the technology to participate in exploitation themselves (Wolfrum 1983, p. 323).

In the real world, seabed mining has not yet to come to pass, despite repeated claims that it is imminent, and the ISA has not yet adopted a 'Mining Code' specifying the conditions under which any seabed mining would come to be authorised. But the 1994 Implementing Agreement amended UNCLOS in several ways, and brought a decisive shift towards passive forms of benefit sharing (Carlsson 1997). When it comes to material redistribution, the best we can say is that no formula has yet been agreed, and no mechanism has been created which could implement it (Ranganathan 2024). Still, what matters for my purposes is the general idea that exploitation is to be *to the benefit of all*. Debates about mechanisms notwithstanding, that has been accepted by all parties to these debates.

What would it mean to apply this third sub-principle to marine animals? It would mean ensuring 1) that marine animals were recognised as stakeholders and addressees when it comes to the collective management of The Area and High Seas biodiversity, and 2) that economic activities in The Area or the High Seas were to their (equitable) benefit. Here, I think, quite a bit more needs to be said.

Let's explore the idea of collective management first. I want first to consider the notion of animals as stakeholders when it comes to the management of common heritage spaces, and second to consider the idea that they might be considered addressees of the rules that govern them.

Can marine animals intelligibly be seen as stakeholders? Some might immediately recoil at that idea. For instance, they might label the idea that animals might participate in collective political decision-making as absurd (for pushback on that claim, see Donaldson and Kymlicka 2023). But before we become mired in that particular debate, recall that the notion of common management does not require all stakeholders to actually participate in collective decision-making. The ISA, for instance, is not an institution characterised by direct democracy, or much in the way of popular participation. It is a largely technocratic body which purports to *represent* the interests of humans the world over, but which has been rather resistant to engagement by civil society actors and ordinary citizens (Ranganathan 2024). More simply, CHP seems to demand that, for marine animals to be included as stakeholders, their interests would have to be appropriately taken into account whenever significant decisions are made. Bodies like the ISA would then be seen as acting on behalf not only of humankind, but of humankind *and* the animals that make the seabed and the water column their home.

The most natural support for this position would seem to arise from the All Affected Interests Principle, which has been the subject of some

discussion recently in the field of animals and political theory. Cochrane (2018) for instance suggests that this principle, which provides our best explanation of why humans have a right that their interests are taken into account in decision-making, *also* supports the conclusion that animals have such a right. If animals do have normatively significant interests, and if those interests are advanced or set back when policies on the marine environment are determined, then these interests ought to be taken into account when decisions are made. The question of what precise interests marine animals might turn out to have is, of course, the topic of some debate. But even accepting that animals have an interest in avoiding pain and suffering would be enough to ground a right to representation under the principle (Magaña 2022). What would need to be worked out, of course, would be some mechanism for making that representation a reality (Donoso 2017). But the idea of marine animals as stakeholders within common heritage spaces does not seem to involve much in the way of conceptual gymnastics.

What, though, of the idea that marine animals might be considered *addressees* of CHP? Here we immediately confront a serious problem, which has not been addressed to date by scholars who have defended extending CHP to animals. The problem lies with the fact that the idea of common management as we encounter it in international law explicitly rules out any unilateral appropriation of the resources to be found in common heritage spaces. And yet marine animals need to consume oceanic resources – some of which will count as CH resources – in order to survive. If they had to ask for permission first – whatever that might mean – their livelihoods would be excessively vulnerable to others' whims. It seems, then, that considering marine animals as addressees of CHP brings us into difficulty, *if* CHP means that no resources can be unilaterally appropriated. How can this problem be avoided? I will outline two possible responses.

The first response suggests that, whereas animals are stakeholders when it comes to the management of resources, it is a mistake to see them as addressees. For someone to be an addressee, it must be the case that one has the practical and intellectual capacity to understand and act on rules such as the veto on unilateral appropriation. Certainly some have argued that non-human animals can possess a sense of justice (see e.g. Bekoff and Pierce 2009), as well as complex cognitive capacities such as a sense of the future (see e.g. Redshaw and Bulley 2018). But, the response suggests, comparatively few animals do so – and probably a very small minority of the trillions of animals that live at sea. It might also be said that animals are not capable of organising politically, or participating in collective political institutions (though for pushback on that claim, see Blattner *et al.* 2020, Donaldson 2020, Castelló 2022). There is a fairly basic difficulty in communicating CHP rules to non-human animals, even if they could in principle understand

them. At present, there seems to be little prospect of doing that, and hence little point in judging non-human animals to be in violation of such rules.

Whether this first response is justified or not will depend, clearly, on complex and contested empirical claims about the capacities of non-human animals. Much ink has been spilled on this topic, and I do not intend to add to it here. For now I simply want to sketch this response, and show how it allows one to grapple with our quandary about unilateral appropriation. What this first response allows one in principle to say is that, as non-addressees, the rules forbidding resource exploitation in CH spaces are simply not binding for non-human animals. Such a move might be resisted, on the basis that it would introduce a kind of asymmetry into CHP. On such a split view, some actors would seen as subjects in one sense but not the other. But note that CHP is *already* (implicitly) committed to such a split view when it comes to future generations of human beings.[2] Generations of humans who are not yet born are seen, within CHP, as stakeholders now when it comes to common heritage spaces. But they are not plausibly seen as addressees now: right now, they can neither act on nor violate common heritage principles, since they do not yet exist. At such a time as they *do* exist (and hence cease to *be* future generations), they will become addressees of CHP. But they will then pass on common heritage spaces to subsequent generations of humans who count as stakeholders to them, but whom they cannot involve in decision-making about common heritage resources, and who themselves can neither uphold nor violate common heritage principles. This kind of asymmetry, then, should be seen as a familiar aspect of CHP, and extending it to animals does not rob the principle of its core meaning.

A second response would hold firm to the notion that non-human animals (or at least some of them, who possess the right kind of moral and intellectual capacities) might plausibly be seen as addresses of CHP, but qualify the requirements of the non-appropriation principle in order to avoid the unpalatable conclusion that animals have no right to secure their basic flourishing without the explicit consent of others. The most obvious move here would invoke something like a right of necessity, or basic rights proviso, as a vital constraint on the rules governing CH spaces. The duty to seek authorisation for consuming common resources *qua* luxuries is all very well, we might say, but the idea that we need to seek authorisation for using resources to sustain our very material survival is not plausible. That requirement would leave us insecure, and open to domination by others. A rich philosophical tradition suggests that a right of necessity is a basic requirement of any just package of rules on property (Mancilla 2016).

As it happens, this amendment of CHP seems to me so plausible that we ought to make it even aside from the question of whether it helps us resolve the status of animals vis-à-vis CHP. Part of the reason we find it appropriate to apply a veto on unilateral exploitation of the minerals on

the deep seabed, and (for certain purposes) the living resources of the High Seas, is, I suggest, that human beings do not rely on them for their material subsistence. Seabed mining, if it ever comes to fruition, would be a very expensive business, and it would probably not be engaged in by people who are very poor. In all likelihood, it would provide minerals to manufacture high-tech consumer products. Ditto the sequencing of marine genetic resources, which has been monopolised to date by large corporations from the global North (Blasiak *et al.* 2018). If people *did* depend on these activities for the most basic needs, we should think differently about a rule that forbade unilateral exploitation. Let us say, then, that a basic rights proviso preserves the freedom to exploit common heritage resources when one has no other practicable means of meeting one's basic rights. This modifies CHP, for both humans and marine animals, and avoids introducing a troubling asymmetry into CHP.

My suggestion, in short, is that there are two ways in which we can approach the question of non-human animals as addressees of the veto on unilateral appropriation. The first, negative, response is to declare that animals should be seen as stakeholders but not as addressees of CHP. Although this seems to introduce a troubling asymmetry within CHP, in truth it does not: it carries over an asymmetry which is already present with regards to future (human) generations. The second, positive, response allows us to hold onto the idea that animals might be both stakeholders and addressees, by revising the rules on appropriation so as to allow unilateral appropriation in order to meet basic rights. This *does* involve a revision of CHP principles, but it is a revision which we have, on reflection, good grounds to accept, both when it comes to human and non-human interests. Either way, the notion that CHP can be extended to non-human animals can still be vindicated.

Finally, let's consider the idea of the equitable sharing of benefits. Here too we face an immediate issue, because it is hard to see how the idea of financial or monetary benefit sharing vis-à-vis marine animals could be made meaningful. Non-human animals have no use for money, which does not constitute a benefit for them. But again, we should not see this problem as fatal: there is, as we have seen, significant precedent for the idea that benefit-sharing could take a more indirect form. In debates leading up to the new BBNJ agreement, for instance, many representatives from the global North advanced the claim that people in the global South might be considered beneficiaries of exploitation of marine genetic resources if they stood to gain from new medical treatments, or simply from an increase in scientific knowledge about marine genetic sequences (Collins *et al.* 2020). The idea that benefiting could be indirect and non-monetary, in short, is familiar enough within debates on CHP. It alerts us to the fact that we would do well to consider the effects of exploitation holistically. It is not enough, on this

sub-principle, that exploitation should not be harmful to animals. It must also be the case that animals are, in some sense, made better off by those activities, or the advances that they make possible. But there are a variety of ways in which that might happen. We will return to this test later.

Intergenerational stewardship

Over time, it has become increasingly common to define the subjects of CHP as humans living both now and in the future (Joyner 1986, Taylor 2018), and the fourth sub-principle seeks to protect the interests of future generations in particular. Unborn generations, of course, cannot participate in contemporary decision-making about the ocean. But this sub-principle suggests that future people, no less than current generations, are nevertheless *stakeholders*: they have normatively relevant interests, which ought to be recognised in contemporary decision-making. They are also plausibly addressees of this final sub-principle, insofar as they are enjoined, by the relevant legal instruments, to observe when they are able their own duties of intergenerational stewardship.

We have already seen that CHP is compatible with the representation of those with relevant interests, and does not demand their active participation in decision-making. In a sense the fourth sub-principle extends this idea. CHP does not specify any particular mechanism for the representation of future people, and neither do UNCLOS or the BBNJ agreement. Presumably, though, there are a number of ways in which this could happen. One would involve the creation of dedicated representatives for future generations, within the decision-making organs that exercise jurisdiction over CH spaces. To date, there has been little uptake for this idea within contemporary debates about the ocean. Instead, defenders of CHP appear to envisage current generations acting in a general sense as fiduciaries for the interests of future people, by upholding norms of oceanic sustainability. Still, the organs that would administer the new BBNJ agreement have not yet been created, so perhaps we should not rule out experiments in representation.

The BBNJ agreement does, though, clearly emphasise its commitment to intergenerational stewardship. Its Preamble states its general intentions: *Desiring* to act as stewards of the ocean in areas beyond national jurisdiction on behalf of present and future generations by protecting, caring for and ensuring the responsible use of the marine environment, maintaining the integrity of ocean ecosystems and conserving the inherent value of biodiversity.[3] The agreement also emphasises the importance of the sustainable use of marine biodiversity, defined as 'the use of components of biological diversity in a way and at a rate that does not lead to a long-term decline of biological diversity, thereby maintaining its potential to meet the needs and aspirations of present and future generations.'[4]

What would it mean to apply this final sub-principle to marine animals? The implications appear to be fairly radical, because UNCLOS, and subsequent instruments under the UNCLOS system, are extremely anthropocentric in orientation. In the entirety of the Law of the Sea Convention, non-human animals feature only as economic resources, and never as organisms who might have their own interests at stake in oceanic governance (Armstrong 2024). The same still goes, for the most part, for the notion of intergenerational stewardship at play in the new BBNJ agreement, which largely emphasises the need to preserve the ocean's riches for the future of humanity. Although the new Treaty does reach out to the inherent value of biodiversity – which is an important development over the Law of the Sea Convention – the key term is perhaps 'maintaining its potential to meet the needs and aspirations of present and future generations.' We are to assume that these are generations of human beings.

Including marine animals as subjects of CHP would mean, clearly, recognising them as entities with their own needs and aspirations, both now and in the future, and ensuring that decisions taken about resource use were compatible with meeting those needs and aspirations. Giving a zoocentric rather than anthropocentric spin to this final sub-principle would have significant practical implications, insofar as many instances of resource exploitation appear highly deleterious to the needs – and, where the term is appropriate, aspirations – of marine animals. As we have seen, there are live debates about whether it makes sense to treat (some) marine animals as addressees of the common heritage principle. But whoever the duty of stewardship fell to, it would take the same form: it would be a duty to protect the needs and aspirations of the trillions of animals that inhabit the ocean, as well as the humans whose interests are often bound up with its ecosystem health.

What difference does it make?

With all of this in mind, we can now assess some of the concrete implications of recognising marine animals as subjects of CHP. My suggestion has been that not too much hangs on the first two sub-principles, which simply add normative force, were it needed, to the existing embargo on certain actions within CH spaces (specifically, the appropriation of those spaces, and the siting of weapons of mass destruction within them). The real action lies with the third and fourth sub-principles, and here the implications of admitting animals as subjects appear to be radical.

It is common to claim that, as it has been applied as a ground-rule within the global economy, CHP has over time been shorn of its progressive credentials. One reason for believing this is that, as we have noted, the expectation that the exploitation of CH resources might be the occasion for

substantial global redistribution has slowly been dissipated. Another is the way in which the institutions that are meant to supervise that exploitation have apparently come to emphasise orderly exploitation rather than environmental protection (Carlsson 1997). According to Guruswamy (1995, p. 48), as it is unpacked within UNCLOS, and especially after the fiasco of the 1994 Implementing Agreement, CHP is not even best understood as a 'conservationist principle' any longer, since it is now 'directed to maximising resource exploitation and economic returns.' Such criticisms, to be clear, do not aim at a rejection of CHP per se. Rather, they bemoan the way in which CHP has been instantiated within the deep sea mining regime, where the rush to extract threatens to trump the environmental commitments embedded in the idea of intergenerational stewardship (Jones *et al.* 2024).

Recognising marine animals as subjects of common heritage in the ocean would likely form a significant check on such trends – for it seems clear that activities like deep sea mining simply fail to take the interests of marine animals seriously. I do not claim, though, that it would rule out all exploitation of CH resources: that would need to be established through consideration of the facts. For instance, is it possible that studying and making use of the genetic sequences of marine animals might, overall, be in their interests (that is, in the interests of the individual animals being studied)? That sounds rather unlikely, but much would presumably depend on the methods and technologies used. In some cases, genetic sequences might be recovered from cast-off cells in marine sediment, or from dead organisms – in which case there may be no harms to counterbalance. In other cases, tissue or blood samples might be collected from live specimens (Rogers *et al.* 2021), raising the justificatory bar, at least in cases where collection is painful or intrusive. Still, in cases where the costs to marine animals are very low, even a small benefit might make the practice net beneficial to them. It seems initially unlikely that benefits will flow to the individual animals whose genes are being studied; but perhaps the thought is not wholly outlandish. For instance, sequencing the genetic profiles of long-living extremophiles dwelling on the seabed might enhance scientific understanding of the threats posed to them by various environmental changes, and enable conservationists to develop better climate policies, for instance. Studying animal tissues might enable vaccines or other treatments to be developed for diseases that affect marine organisms, including the animals being studied. And so on.

The case for seabed mining, by contrast, is very much harder to make, since it seems certain to cause very serious harms to organisms both on the seabed and in the water column (Niner *et al.* 2018). Vast sediment plumes appear likely to smother millions of animals (Weaver *et al.* 2022), causing an enormous amount of suffering and death. It is hard to even conceive of what it might mean to say that such activities were nevertheless net beneficial for the animals affected.

What recognising marine animals as subjects of CHP requires, then, is not an embargo on any exploitation of CH resources, but rather a much more careful assessment of whether instances of exploitation could ever be said to be in their interest. Note, though, that in this paper I have provided another argument against the idea of a strict embargo on exploitation or extraction. Specifically, I have argued that considering animals as subjects of common heritage speaks in favour of an amendment to CHP, which protects anyone's right to meet their basic needs by way of exploiting CH resources, when they have no reasonable alternative but to do so. That proviso, of course, would also protect humans whose most basic interests were at stake. But the basic rights proviso should be accepted, because it is more reasonable than a blanket embargo on exploitation.

Beyond hierarchy

In this paper I have argued that we should see marine animals, alongside humans, as subjects of common heritage at sea. But it might be that an even stronger conclusion is justified: perhaps it is *only* marine animals who should possess this status, given their exceptional dependence on a healthy ocean, and the fact that the ocean is their only home. We might worry that my position is compatible with a kind of hierarchy, whereby humans get to be subjects of common heritage at sea, *and* to exercise territorial sovereignty over the land. Marine animals, by contrast, get to be subjects of common heritage at sea, but do not get to hold territorial sovereignty anywhere. Could such a hierarchy be justified?

I believe not. I have two things to say in response. First, we must hold fast to the idea that humans *should* be considered subjects of common heritage at sea. The key insight behind CHP is that *all* human beings depend on the ocean, and that its governance is therefore critical to all of our survival. For institutions of ocean governance to put the interests of humans to one side would therefore be highly problematic. Because our most basic rights are tangled up in its future, humans have a right to a say in decisions about that future. This claim, however, does nothing to introduce species hierarchy. It is perfectly compatible with giving appropriate weight to the interests of non-human animals, whether they live in the sea or outside of it. We might well conclude that the interests of humans should count for relatively little in marine governance. Marine animals, as we have noted, outnumber humans hugely. And even if all animals depend on a healthy ocean, marine animals might depend on the ocean in more ways than humans do. In the end, the practical implications of recognising humans as subjects of common heritage at sea might be relatively modest – but that recognition is still justified.

Second, my position is perfectly compatible with endorsing territorial rights for marine animals. Indeed the standard justifications of territorial

rights for humans seem to apply readily to many animals. Many animals need stable territories in which to pursue projects that matter to them. Dispossession can be a harm for them just as it can for humans, and may show objectionable disrespect for their agency and autonomy. Marine animals surely also have the right to make a living in marine spaces, even if this involves consuming oceanic resources. Earlier, I argued that CHP must be amended precisely to protect the rights of animals to unilaterally meet their subsistence needs in the ocean spaces where they live. In short, marine animals are surely the holders of significant territorial rights within ocean spaces. CHP must be understood in a way that is compatible with those rights.

Conclusion

The ocean looks like what political scientists sometimes call an 'inverse Sinatra' case (Levy 2008): if the notion of the common heritage of animalkind can't make it there, then it probably can't make it anywhere. While millions of people work at sea, the ocean is, first and foremost, a habitat for trillions of non-human animals. To date, however, as Jones *et al.* (2024), p. 122) put it, 'international law is a long way from accepting the conceptual expansion of the principle to include nonhuman subjects.' In this paper I have assessed what would be involved in that radical expansion. The idea that marine animals could be subjects of CHP should be more than a rhetorical gesture: we should carefully unpack its conceptual and its practical implications. I have begun that discussion here. I have found that the extension of CHP to animals is challenging in ways which have not to date been recognised. But I have also suggested that these challenges are not insurmountable, even if they do require us to think about common heritage in somewhat novel ways. This is important because, I believe, the extension of CHP to animals has significant appeal. After all, if the motivating concern behind CHP in the human case is that what happens in the ocean touches upon all of our interests, the same is surely true of the animals who make the ocean their home.

Notes

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2. Thanks to Josh Milburn for discussing this point with me.
3. https://www.un.org/bbnj/sites/www.un.org.bbnj/files/draft_agreement_advanced_unedited_for_posting_v1.pdf (Preamble).

4. Ibid, Article 1.

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